

CHAPTER 5

National Insurance Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Lower rates of contributions and higher rates or amounts of benefits under Industrial Injuries Act.
2. Higher rates or amounts of contributions and benefits under National Insurance Act, 1946.
3. Entitlement to retirement pension.
4. Regulations.
5. Expenses.
6. Citation, construction, commencement, repeals and extent.

SCHEDULES:

- First Schedule—Amendments of Industrial Injuries Act.
 Second Schedule—Provisions to be substituted in First Schedule to National Insurance Act, 1946.
 Third Schedule—Provisions to be substituted in Part I of Second Schedule to National Insurance Act, 1946.
 Fourth Schedule—Amendments consequential on or supplemental to s. 2 (1) (2).
 Fifth Schedule—Transitional provisions.
 Sixth Schedule—Enactments repealed.

An Act to amend the rates or amounts of contributions and benefits under the National Insurance (Industrial Injuries) Acts, 1946 to 1959, and the National Insurance Acts, 1946 to 1959, not being graduated contributions or graduated retirement benefit; to modify the provisions of the National Insurance Act, 1946, under which persons are treated as having retired; and for purposes connected with the matters aforesaid.
 [20th December, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from the beginning of the contribution week appointed for the purposes of paragraph (a) of subsection (1) of section one of the National Insurance Act, 1959, in Part I of the Second Schedule to the National Insurance (Industrial Injuries) Act, 1946 (hereafter in this Act referred to as "the Industrial Injuries Act") for the table of rates of contributions set out in the First Schedule to the National Insurance (No. 2) Act, 1957, there shall be substituted the table set out in Part I of the First Schedule to this Act.

(2) The provisions of the Industrial Injuries Act specified in the first column of Part II of the First Schedule to this Act

(which relate to the rates and amounts of benefit described in the second column of the said Part II) shall be amended by substituting for the words and figures set out in the third column of the said Part II the corresponding words and figures set out in the fourth column thereof.

(3) The provisions of the Industrial Injuries Act specified in Part III of the First Schedule to this Act shall have effect subject to the amendments respectively specified in the said Part III, being amendments consequential on or supplemental to the amendments made by the last foregoing subsection.

Higher rates
or amounts of
contributions
and benefits
under National
Insurance
Act, 1946.

2.—(1) As from the beginning of the contribution week appointed for the purposes of paragraph (a) of subsection (1) of section one of the National Insurance Act, 1959, for Parts I to IV of the First Schedule to the National Insurance Act, 1946, as set out in the Third Schedule to the National Insurance (No. 2) Act, 1957, and amended by the said subsection (1) (which relate to weekly rates of contributions payable by insured persons and employers) there shall be substituted the provisions set out in the Second Schedule to this Act.

(2) For the provisions contained in Part I of the Second Schedule to the said Act of 1946 as set out in Part I of the Fourth Schedule to the said Act of 1957 (which relates to rates of periodical benefits and of increases for dependants) there shall be substituted the provisions set out in the Third Schedule to this Act.

(3) The amounts of maternity grant and home confinement grant shall be increased from twelve pounds ten shillings and five pounds respectively to fourteen pounds and six pounds respectively, and Part II of the Second Schedule to the said Act of 1946 as set out in Part II of the Fourth Schedule to the said Act of 1957 shall be amended accordingly.

(4) The enactments specified in the Fourth Schedule to this Act shall have effect subject to the amendments respectively specified in that Schedule, being amendments consequential on or supplemental to those made by subsections (1) and (2) of this section.

(5) The provisions of this section increasing retirement pensions shall not be taken as affecting the provisions of section seventy-four of the said Act of 1946 relating to non-contributory pensions.

Entitlement to
retirement
pension.

3. In paragraph (a) of subsection (2) of section twenty of the National Insurance Act, 1946, at the end of sub-paragraph (ii) (which sets out the circumstances in which a person may be treated as having retired from regular employment notwithstanding that he is engaged or intends to engage in a gainful occupation) there shall be added the words "or if his earnings can be

expected not to exceed, or only occasionally to exceed, the amount any excess over which would, under subsection (5) of this section, involve a reduction of the weekly rate of any retirement pension awarded to him ”.

4.—(1) Regulations made by virtue of this Act shall be made Regulations. separately according as they relate to the Industrial Injuries Act or to the National Insurance Act, 1946, and for the purposes—

- (a) of any provision of the Act to which they relate with respect to regulations under that Act ; and
- (b) of the Statutory Instruments Act, 1946,

shall be treated as regulations under the Act to which they relate.

(2) Without prejudice to the generality of any power to make regulations under the National Insurance Act, 1946, and to the construction as one with that Act of the provisions of this Act relating thereto—

- (a) subsection (2) of section sixty-five of that Act (which confers power to prescribe in relation to existing contributors and existing beneficiaries modifications of, and additions and exceptions to, the foregoing provisions of that Act) shall have effect as if the reference therein to the foregoing provisions of that Act included a reference to, and as if the said power extended to the prescribing of any further modifications, additions and exceptions appearing to the Minister to be necessary or expedient in consequence of, any provision of this Act relating to that Act ;
- (b) subsection (2) of section seventy-one of that Act (which confers power to modify the foregoing sections of that Act in relation to any entrants who are over school leaving age on the appointed day within the meaning of that Act) shall have effect as if the reference therein to the foregoing sections of that Act included a reference to any provision of this Act relating to that Act ;
- (c) the power conferred by subsection (4) of section sixty-nine of that Act to make provision by regulations for the modifying or winding up, in connection with the passing of that Act, of certain schemes, shall include power to make such further provision therefor as appears to the authority by whom the power is exercisable to be necessary or expedient in consequence of any provision of this Act relating to that Act.

(3) Subsection (2) of section sixty-one of the Industrial Injuries Act (which requires any proposal to make regulations to be referred to the Industrial Injuries Advisory Council for consideration and advice) and section seventy-seven of the National Insurance Act, 1946 (which requires a preliminary draft of regulations

to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft thereof is laid before Parliament) shall not apply to any regulations made, or to any draft of regulations laid before Parliament, before the expiration of the period of six months beginning with the date of the passing of this Act if the instrument containing the regulations or, as the case may be, the draft of that instrument states that the regulations are made in consequence of this Act.

Expenses.

5. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under—

- (a) subsection (1) of section sixty of the Industrial Injuries Act (as extended by section seventeen of the National Insurance Act, 1959) ; or
- (b) subsection (1) of section thirty-eight of the National Insurance Act, 1946 (as extended as aforesaid) ; or
- (c) subsection (3) of section one of the said Act of 1959.

Citation,
construction,
commence-
ment, repeals
and extent.

6.—(1) This Act may be cited as the National Insurance Act, 1960.

(2) This Act—

- (a) so far as it relates to the Industrial Injuries Act, shall be construed as one with that Act and may be cited together with the National Insurance (Industrial Injuries) Acts, 1946 to 1959, as the National Insurance (Industrial Injuries) Acts, 1946 to 1960 ;
- (b) so far as it relates to the National Insurance Act, 1946, shall be construed as one with that Act and may be cited together with the National Insurance Acts, 1946 to 1959, as the National Insurance Acts, 1946 to 1960.

(3) The following provisions of this Act, that is to say, subsections (2) and (3) of section one, subsections (2) and (3) of section two, section three, subsection (4) of this section, Parts II and III of the First Schedule, the Third Schedule, paragraphs 2 to 5 of the Fourth Schedule, and the Sixth Schedule, shall come into operation only on such day as the Minister may by order made by statutory instrument appoint, and different days may be appointed for different purposes of this Act or for the same purposes in relation to different cases or classes of case ; and any such order may—

- (a) if the date thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplemental provisions as appear to the Minister to be necessary or expedient as respects the period or any

part of the period when this Act is to have a partial operation only, and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act ;

(b) be varied or revoked by a subsequent order under this subsection ;

and the provisions of this Act shall take effect subject to the transitional provisions set out in the Fifth Schedule to this Act.

(4) Such of the provisions of the enactments specified in the first and second columns of the Sixth Schedule to this Act as are specified in the third column of that Schedule are hereby repealed :

Provided that any regulations made by virtue of any enactment repealed by this Act, or by virtue of any such enactment as applied by any other Act, shall continue to have effect as if this subsection had not been passed.

(5) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provision relating to Northern Ireland of the Industrial Injuries Act or the National Insurance Act, 1946, this Act shall not extend to Northern Ireland.

SCHEDULES

Section 1.

FIRST SCHEDULE

AMENDMENTS OF INDUSTRIAL INJURIES ACT

PART I

TABLE TO BE SUBSTITUTED IN PART I OF SECOND SCHEDULE

Weekly Rates of Contributions payable by Insured Persons and Employers

Class of insured person to whom rate applies	Weekly rate of contribution	
	By the insured person	By the employer
Men over the age of 18 ...	d. 7	d. 8
Women over the age of 18...	4	5
Boys under the age of 18 ...	4	4
Girls under the age of 18 ...	2	3

PART II

AMENDMENTS OF BENEFIT PROVISIONS

(The references to the various provisions are references to those provisions as amended by the Second Schedule to the National Insurance (No. 2) Act, 1957, and any other enactment specifically mentioned in the first column of this Schedule)

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 11 (3) ...	Weekly rates of injury benefit— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries between 17 and 18 without dependants, (c) for beneficiaries under 17 without dependants.	Eighty-five shillings. Sixty-three shillings and ninepence. Forty-two shillings and sixpence.	Ninety-seven shillings and sixpence. Seventy-three shillings and twopence. Forty-eight shillings and ninepence.
Section 12 (6) ...	Maximum amount of disablement gratuity for disablement of less than twenty per cent.	Two hundred and eighty pounds.	Three hundred and twenty pounds.

1st Sch.

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Third Schedule (applied by s. 12 (7)).	Weekly rates of disablement pension for degrees of disablement of—		
	100 per cent. ...	85 shillings.	97 shillings and 6 pence.
	90 per cent. ...	76 shillings and 6 pence.	87 shillings and 9 pence.
	80 per cent. ...	68 shillings.	78 shillings.
	70 per cent. ...	59 shillings and 6 pence.	68 shillings and 3 pence.
	60 per cent. ...	51 shillings.	58 shillings and 6 pence.
	50 per cent. ...	42 shillings and 6 pence.	48 shillings and 9 pence.
	40 per cent. ...	34 shillings.	39 shillings.
	30 per cent. ...	25 shillings and 6 pence.	29 shillings and 3 pence.
	20 per cent. ...	17 shillings.	19 shillings and 6 pence.
Section 13 (1) ...	Amounts by which weekly rates of disablement pension are increased on account of unemployability—		
	(a) for beneficiaries over 18 or with dependants,	Fifty shillings.	Fifty-seven shillings and sixpence.
	(b) for beneficiaries under 18 without dependants.	Twenty-eight shillings and sixpence.	Thirty-two shillings and sixpence.
Section 14 (1) (as amended by s. 1 of National Insurance (Industrial Injuries) Act, 1948).	Maximum amount of increase of weekly rate of disablement pension in cases of special hardship.	Thirty-four shillings.	Thirty-nine shillings.
Section 15 (2) ...	Maximum amount of increase of weekly rate of disablement pension where constant attendance is needed—		
	(a) in cases other than those of exceptionally severe disablement,	Thirty-five shillings.	Forty shillings.
	(b) in cases of exceptionally severe disablement.	Seventy shillings.	Eighty shillings.

1ST SCH.

Provision of Industrial Injuries Act	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 17 (1) (as amended by s. 3 of National Insurance Act, 1951).	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest.	Fifteen shillings. Seven shillings.	Seventeen shillings and sixpence. Nine shillings and sixpence.
Section 18 (1) ...	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension in respect of adult dependant.	Thirty shillings.	Thirty-five shillings.
Section 19 (3) ...	Weekly rate of widow's pension payable in circumstances specified in the subsection.	Fifty-six shillings.	Sixty-four shillings.
Section 19 (4) ...	Maximum higher weekly rate of widow's pension payable for prescribed period after deceased's death.	Seventy shillings.	Eighty shillings.
Section 20 (2) ...	Weekly rate of widow's pension.	Fifty-six shillings.	Sixty-four shillings.
Section 21 (1) (as amended by s. 3 of National Insurance Act, 1951, and Schedule to Family Allowances and National Insurance Act, 1956).	Weekly rate of death benefit— (a) in respect of only, elder or eldest child, (b) in respect of each child other than the elder or eldest. Amount of increase of aforesaid weekly rate payable to a widow in circumstances specified in the subsection.	Fifteen shillings. Seven shillings. Five shillings.	Seventeen shillings and sixpence. Nine shillings and sixpence. Seven shillings and sixpence.

PART III

1st Sch.

Consequential and supplemental amendments

1. In subsection (3) of section fourteen (as set out in the Schedule to the National Insurance (Industrial Injuries) Act, 1948, and amended by the Fifth Schedule to the National Insurance (No. 2) Act, 1957) (which provides that the weekly rate of a disablement pension, apart from any increase in respect of the need for constant attendance or in respect of a dependant, shall not by virtue of an increase in respect of special hardship under that section be increased above eighty-five shillings) for the words "eighty-five shillings" there shall be substituted the words "ninety-seven shillings and sixpence".

2. In subsection (1) of section twenty-one, in the words inserted by paragraph 10 of the Schedule to the Family Allowances and National Insurance Act, 1956, as amended by the said Fifth Schedule (by virtue of which a widow whose family includes a child of her deceased husband is not entitled to the special increase provided for by that subsection of death benefit in respect of that child if she is contributing to the cost of providing for that child at a rate of less than twenty shillings a week) for the words "twenty shillings" there shall be substituted the words "twenty-five shillings".

3. In paragraph (a) of subsection (1) of section twenty-nine (which, as amended by the said Act of 1948 and the said Fifth Schedule, limits the aggregate of weekly benefit payable for successive accidents)—

- (a) in sub-paragraph (i), for the words "eighty-five shillings" (which relate to beneficiaries over 18 or with a dependant) there shall be substituted the words "ninety-seven shillings and sixpence";
- (b) in sub-paragraph (ii), for the words "sixty-three shillings and ninepence" (which relate to the maximum rate, apart from any increase of benefit under section fourteen, for a beneficiary between 17 and 18 with no dependant) there shall be substituted the words "seventy-three shillings and twopence";
- (c) in sub-paragraph (ii), for the words "eighty-five shillings" (which relate to the maximum rate including any increase under section fourteen for a beneficiary between 17 and 18 with no dependant) there shall be substituted the words "ninety-seven shillings and sixpence";
- (d) in sub-paragraph (iii), for the words "forty-two shillings and sixpence" (which relate to a beneficiary under 17 with no dependant) there shall be substituted the words "forty-eight shillings and ninepence".

4. In subsection (2) of section thirty (as amended by the Schedule to the National Insurance Act, 1951, and the said Fifth Schedule) (which relates to persons entitled to benefit at the higher of the rates provided for by section twenty-one)—

- (a) the words "at the weekly rate of fifteen shillings" shall be omitted; and

1ST SCH.

- (b) after the words "his family" there shall be inserted the words "at the rate applicable to an only, elder or eldest child".

5. In paragraph 1 of the Fourth Schedule (as amended by the Schedule to the said Act of 1951 and by the said Fifth Schedule) (which relates to the person entitled to an allowance at either of the two rates provided for by section twenty-one where two or more persons satisfy the conditions for receipt of such an allowance)—

- (a) in head (ii) of sub-paragraph (1)—

(i) for the words "at the weekly rate of fifteen shillings or more" there shall be substituted the words "at, or at a rate higher than, the rate applicable to an only, elder or eldest child";

(ii) for the words "at the weekly rate of seven shillings" there shall be substituted the words "at the rate applicable to a child other than an only, elder or eldest child";

- (b) in paragraph (a) of sub-paragraph (2), for the words "at the weekly rate of fifteen shillings or more" there shall be substituted the words "at, or at the rate higher than, the rate applicable to an only, elder or eldest child".

SECOND SCHEDULE

Section 2.

PROVISIONS TO BE SUBSTITUTED IN FIRST SCHEDULE
TO NATIONAL INSURANCE ACT, 1946

CONTRIBUTION RATES

PART I

Employed Persons

Description of employed person	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment	If by virtue of a non-participating employment
	s. d.	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding 60s.	7 3½	8 10½
Earning remuneration at a weekly rate of 60s. or less	3 10½	4 8½
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—		
Earning remuneration at a weekly rate exceeding 60s.	6 3½	7 1½
Earning remuneration at a weekly rate of 60s. or less	3 4½	3 10½
Boys under the age of 18	5 0½	
Girls under the age of 18	4 0½	

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of sixty shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds nor is deemed in accordance with regulations made under subsection (5) of section seventy-eight of this Act to exceed sixty shillings a week, and to be earning remuneration at a weekly rate exceeding sixty shillings in any other case.

2ND SCH.

PART II
Employers

Description of employed person	Weekly Rate of Contribution	
	Unless by virtue of a non-participating employment	If by virtue of a non-participating employment
	s. d.	s. d.
Men over the age of 18—		
Earning remuneration at a weekly rate exceeding 60s. or not being liable to pay a contribution as an employed person...	7 3½	8 6½
Earning remuneration at a weekly rate of 60s. or less and being liable to pay a contribution as an employed person ...	10 8½	12 8½
Women over the age of 18—		
Earning remuneration at a weekly rate exceeding 60s. or not being liable to pay a contribution as an employed person...	6 3½	6 8½
Earning remuneration at a weekly rate of 60s. or less and being liable to pay a contribution as an employed person ...	9 2½	9 11½
Boys under the age of 18 	4 10½	
Girls under the age of 18 	3 9½	

For the purposes of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III
Self-Employed Persons

Description of self-employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment) 	11 4
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment) 	9 4
Boys under the age of 18 	6 5
Girls under the age of 18 	5 3

PART IV

2ND SCH.

Non-Employed Persons

Description of non-employed person	Weekly Rate of Contribution
Men between the ages of 18 and 65	s. d. 8 7
Women between the ages of 18 and 60	6 7
Boys under the age of 18	4 10
Girls under the age of 18	3 9

THIRD SCHEDULE

Section 2.

PROVISIONS TO BE SUBSTITUTED IN PART I OF SECOND
SCHEDULE TO NATIONAL INSURANCE ACT, 1946

Rates of periodical benefits and of increases for dependants

Description of Benefit	Weekly Rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
1. Unemployment benefit and sickness benefit—				
(a) in the case of a person over the age of eighteen, not being a married woman	57 6	17 6	9 6	35 0
(b) in the case of a person under the age of eighteen, not being a married woman—				
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant	57 6	17 6	9 6	35 0
(ii) during any other period	32 6	—	—	—
(c) in the case of a married woman over the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband	57 6	17 6	9 6	35 0
(ii) during any other period	39 0	17 6	9 6	35 0

3RD SCH.

Description of Benefit	Weekly Rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
(d) in the case of a married woman under the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband	57 6	17 6	9 6	35 0
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	39 0	17 6	9 6	35 0
(iii) during any other period	32 6	—	—	—
2. Maternity allowance	57 6	17 6	9 6	35 0
3. Widow's allowance	80 0	25 0	17 0	—
4. Widowed mother's allowance—				
(a) where payable by virtue of the widow's having a family...	82 6	—	17 0	—
(b) in any other case	57 6	—	—	—
5. Widow's pension	57 6	—	—	—
6. Guardian's allowance	32 6	—	—	—
7. Retirement pension—				
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive	35 0	17 6	9 6	—
(b) in any other case	57 6	17 6	9 6	35 0
8. Child's special allowance (if not in excess of weekly rate of contributions previously made by deceased husband) ...	25 0	—	17 0	—

NOTE:—The increases of maternity allowance specified in the third, fourth and fifth columns of this Part of this Schedule apply only in so far as provided for by regulations under section eight of the National Insurance Act, 1953.

FOURTH SCHEDULE

Section 2.

AMENDMENTS CONSEQUENTIAL ON OR SUPPLEMENTAL TO S. 2 (1) (2)

1. As from the beginning of the contribution week referred to in subsection (1) of section two of this Act, subsection (2) of section two of the National Insurance Act, 1946 (which relates to the rates of contributions by insured persons and employers) shall have effect as if—

- (a) in paragraph (a) thereof, for the words from “the rate” onwards there were substituted the words “the rate set out in relation to that description in the second or third column of the said Part I which, under the National Insurance Act, 1959, is appropriate to his employment”;
- (b) in paragraph (b) thereof, for the words from “the rate” onwards there were substituted the words “the rate set out in relation to that description in the second or third column of the said Part II which, under the said Act of 1959, is appropriate to that person’s employment”.

2. In the following provisions of section seventeen of the said Act of 1946, that is to say—

- (a) sub-paragraph (i) of paragraph (b) of subsection (1) (as set out in paragraph 1 of the Schedule to the Family Allowances and National Insurance Act, 1956, and amended by the Fifth Schedule to the National Insurance (No. 2) Act, 1957) (which in certain cases makes provision with respect to widowed mother’s allowance by reference to the rate, being a rate of twenty shillings a week or more, at which the widow contributes to the cost of providing for a child included in her family); and
- (b) the proviso to subsection (3) (as set out in paragraph 3 of the Schedule to the said Act of 1956 and amended by the said Fifth Schedule) (which provides that a widowed mother’s allowance payable by virtue of the widow having a family shall not, by reason of any earnings of the widow, be reduced under that subsection for any week to less than twenty shillings),

for the words “twenty shillings” in each of the three places where they occur in those provisions there shall be substituted the words “twenty-five shillings”.

3. In section twenty-three of the said Act of 1946, in paragraph (b) of subsection (3) (as set out in paragraph 1 of the Schedule to the National Insurance Act, 1951, and amended by the said Fifth Schedule) (which relates to the payment of increases of retirement pensions in respect of children at the two rates provided for by subsection (1) of that section)—

- (a) for the words “the weekly rate of fifteen shillings” there shall be substituted the words “the rate applicable to an only, elder or eldest child”;
- (b) for the words “the weekly rate of seven shillings” there shall be substituted the words “the rate applicable to a child other than an only, elder or eldest child”.

4TH SCH.

4. In subsection (3) of section eight of the National Insurance Act, 1953 (as amended by the said Fifth Schedule) (which relates to the amounts of the increases of maternity allowance payable in certain cases)—

(a) in paragraph (a)—

(i) for the words “fifteen shillings” there shall be substituted the words “such amount”;

(ii) after the words “eldest of those children” there shall be inserted the words “as is specified in relation to maternity allowance in the third column of Part I of the Second Schedule to the principal Act”;

(iii) for the words “seven shillings” there shall be substituted the words “such amount”; and

(iv) at the end there shall be added the words “as is specified in relation to that allowance in the fourth column of the said Part I”;

(b) in paragraph (b), for the words “thirty shillings” there shall be substituted the words “such amount as is specified in relation to that allowance in the fifth column of the said Part I”.

5. In paragraph (b) of subsection (3) of section five of the National Insurance Act, 1957 (as amended by subsection (3) of section two of the National Insurance (No. 2) Act, 1957) (which relates to the rates of child's special allowance)—

(a) for the words “twenty shillings” there shall be substituted the words “the amount specified in relation to the said allowance in the second column of Part I of the Second Schedule to the principal Act”;

(b) for the words “twelve shillings” there shall be substituted the words “such amount”; and

(c) at the end there shall be added the words “as is specified in relation to that allowance in the fourth column of the said Part I”.

6. In section one of the National Insurance Act, 1959—

(a) in paragraph (a) of subsection (1)—

(i) in sub-paragraph (i), for the words “Part I of the First Schedule to this Act” there shall be substituted the words “the first column of Part I of the First Schedule to the principal Act”;

(ii) in sub-paragraph (ii), after the words “referred to in” there shall be inserted the words “the first column of”; and

(iii) for the words from “in that Schedule” onwards there shall be substituted the words “in the second column of the said Part I or, as the case may be, Part II; and”;

(b) in subsection (2), in sub-paragraph (i) of paragraph (b), for the words from “the rates” onwards there shall be substituted the words “the rates set out in the second columns of Parts I and II of the First Schedule to the principal Act and the rates set out in relation to boys or girls under the age of eighteen in the second columns of Parts III and IV of that Schedule; and”.

7. In subsection (1) of section seven of the said Act of 1959, for the words from the beginning to "graduated contribution" there shall be substituted the words "For the purpose of determining the rate of the contribution payable by or in respect of an employed person for any contribution week by virtue of any employment which is a non-participating employment, subsection (1) of section one of this Act shall have effect as if in paragraph (a) thereof for the words 'second column' there were substituted the words 'third column', and no graduated contribution shall".

4TH SCH.

FIFTH SCHEDULE

Section 6.

TRANSITIONAL PROVISIONS

Effect of awards made before, or in respect of the period beginning before, appointed or prescribed day

1.—(1) Where an award of any benefit under the Industrial Injuries Act or the National Insurance Act, 1946, has been made, whether before or after the passing of this Act, before the day appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate by virtue of this Act or any regulations made in consequence thereof, then, subject to such exceptions or conditions as may be prescribed by regulations made by the Minister, the benefit shall, without any claim being made therefor, become payable (except as respects any period falling before that day) at the higher weekly rate, and the award shall have effect accordingly.

(2) Where any such award—

(a) is made after a day has been appointed or prescribed for the payment of benefit of the description to which the award relates at a higher weekly rate or within a higher maximum weekly rate by virtue of this Act or any regulations made in consequence thereof; and

(b) is made before that day,

the award may provide for the benefit to be paid, as from that day, at the higher weekly rate, or as the case may be, at any weekly rate within the higher maximum rate.

Variation of disablement gratuities

2. Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under subsection (6) of section twelve of the Industrial Injuries Act may provide that the scale as varied shall apply only in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

Maternity and home confinement grants

3.—(1) The provisions of this Act increasing maternity or home confinement grants shall not affect the amount of such a grant where the confinement occurred before the day appointed in relation to those provisions under subsection (3) of section six of this Act.

(2) The provisions of this Act increasing maternity grants shall not affect the amount of any such grant to which a woman has

5TH SCH. become entitled before the said day by virtue of regulations made under subsection (4) of section fourteen of the National Insurance Act, 1946, as set out in the First Schedule to the National Insurance Act, 1953:

Provided that regulations made by the Minister may provide for increasing to the amount provided for by this Act the amount of a maternity grant to which a woman has become entitled before the said day (whether payment has already been made or not) if the confinement in question has not occurred before that day and her pregnancy has not been otherwise terminated before that day.

Section 6.

SIXTH SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 34.	The National Insurance Act, 1951.	In subsection (4) of section three, the words from "substituting" to "and by". Subsection (6) of section four. In the Schedule, paragraph 4.
15 & 16 Geo. 6. and 1 Eliz. 2. c. 29.	The Family Allowances and National Insurance Act, 1952.	The whole Act except so far as it relates to the Family Allowances Act, 1945.
1 & 2 Eliz. 2. c. 29.	The National Insurance Act, 1953.	In the First Schedule, paragraphs 3, 7, 12 and 13.
3 & 4 Eliz. 2. c. 1.	The National Insurance Act, 1954.	The whole Act.
3 & 4 Eliz. 2. c. 29.	The National Insurance Act, 1955.	Section two.
4 & 5 Eliz. 2. c. 50.	The Family Allowances and National Insurance Act, 1956.	In the Schedule, paragraph 8.
5 & 6 Eliz. 2. c. 34.	The National Health Service Contributions Act, 1957.	In section two, subsection (2) from the word "and" where last occurring onwards, and subsections (3) and (4). In subsection (2) of section seven, the words "and the Second and Third Schedules thereto". The Second and Third Schedules.
6 & 7 Eliz. 2. c. 1.	The National Insurance (No. 2) Act, 1957.	Section one. In section two, subsections (1), (3) and (4). The First, Second and Third Schedules. In the Fourth Schedule, Parts I and III. The Fifth Schedule except so far as it relates to section seventy-two of the National Insurance Act, 1946.
7 & 8 Eliz. 2. c. 47.	The National Insurance Act, 1959.	The First Schedule.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Family Allowances Act, 1945	8 & 9 Geo. 6. c. 41.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Insurance (Industrial Injuries) Act, 1948	11 & 12 Geo. 6. c. 42.
National Insurance Act, 1951	14 & 15 Geo. 6. c. 34.
National Insurance Act, 1953	1 & 2 Eliz. 2. c. 29.
Family Allowances and National Insurance Act, 1956	4 & 5 Eliz. 2. c. 50.
National Insurance Act, 1957	5 & 6 Eliz. 2. c. 26.
National Insurance (No. 2) Act, 1957	6 & 7 Eliz. 2. c. 1.
National Insurance Act, 1959	7 & 8 Eliz. 2. c. 47.

CHAPTER 6

An Act to replace the existing limits on the numbers of Parliamentary Secretaries in individual departments by a single aggregate limit; to authorise the payment of a salary to a Parliamentary Secretary to the Minister for Science; and to increase the salary of the Captain of the Gentlemen-at-Arms. [20th December, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The limits imposed by section two of the Ministers of the Crown Act, 1937, or by any other enactment upon the number of persons to whom salaries may be paid as the holders of any one or more of the offices to which this section applies, or who may be appointed to hold any such office, shall cease to have effect; but the total number of persons to whom salaries may be paid at any time as the holders of all such offices shall not exceed thirty-three.

Numbers of
Parliamentary
Secretaries.
1 Edw. 8 and
1 Geo. 6. c. 38.

(2) This section applies to the offices listed in Part II of the Second Schedule to the House of Commons Disqualification Act, 1957, except those of the Law Officers, the Secretaries to and Junior Lords of the Treasury, and the Treasurer, Comptroller and Vice-Chamberlain of Her Majesty's Household.

5 & 6 Eliz. 2.
c. 20.

2.—(1) There shall be paid out of moneys provided by Parliament to any person holding office as Parliamentary Secretary to the Minister for Science an annual salary not exceeding two thousand five hundred pounds.

Salary of
Parliamentary
Secretary for
Science.